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4 KOSTIANTYN MARS, PRO SE

5
6 **UNITED STATES DISTRICT COURT**
7 **WESTERN DISTRICT OF TEXAS**
8 **AUSTIN DIVISION**
9

10 KOSTIANTYN MARS

11 Removing Defendant / Movant,

12 vs.

13 THE PEOPLE OF THE STATE OF
14 CALIFORNIA,

15 Respondent.
16

) Case No.: B2402220
)

) **EXHIBIT B**
) **EVIDENCE BINDER IN SUPPORT OF**
) **MOTION TO DISMISS CRIMINAL CASE**
) **B2402220**

) **DATE:**
) **TIME:**
) **DEPT:**
)

17
18 **EXHIBIT B**
19 **EVIDENCE BINDER IN SUPPORT OF**
20 **MOTION TO DISMISS CRIMINAL CASE B2402220**

21 Submitted concurrently with the Motion to Dismiss (Federal - Western District of Texas)

22
23 Respectfully submitted,

24 DATED: April 8, 2026

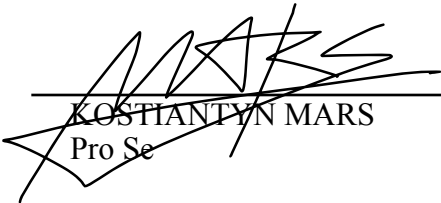
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27 KOSTIANTYN MARS
28 Pro Se

TABLE OF CONTENTS

Exhibit	Description	Page
<u>B-1</u>	Statement of Disqualification - Judge Andrea Flint (Nov. 13, 2023)	4
<u>B-2</u>	Void ab initio Domestic Violence Restraining Order signed by Judge Flint After Disqualification (Nov. 28, 2023)	5
<u>B-3</u>	Key Statements and Material Facts from Transcript and Audio Recording (Extortion of Money and Documents, Threats of Malicious Prosecution) - Hearing before Judge Stephen Lowney (Feb. 7, 2024)	6
<u>B-4</u>	Transcript and Audio Recording - Hearing Before Judge Stephen Lowney (Feb. 7, 2024)	17
<u>B-5</u>	Statement of Disqualification - Judge Stephen Lowney (Feb. 20, 2024)	20
<u>B-6</u>	Items Seized from Minor Child Max Mars During Arrest - Tesla Cybertruck with Donald Trump, "Warrior Kid" book by Jocko Willink, Donuts and Hot Chocolate - Denial of Contact (Jun. 14, 2024)	21
<u>B-7</u>	Video recording of unlawful arrest by Officer Chase Martin (Badge #17209, Sunnyvale PD, CA) (Jun. 14, 2024)	23
<u>B-8</u>	Void ab initio Bench Warrant issued by Judge Stephen Lowney after his disqualification and threats of malicious prosecution (Jun. 17, 2024)	24
<u>B-9</u>	Additional Bench Warrant by Benjamin Williams and Arrest Warrant by Michael Clark (Aug. 21 - Oct. 23, 2024)	26
<u>B-10</u>	Sunnyvale Police Department - Denial of Access to Body Camera Recordings of Police Officers committed unlawful arrest (Oct. 30, 2024)	29
<u>B-11</u>	Video Recordings of Criminal Court Hearings before Judges Thomas Kuhnle and Benjamin Williams (Aug. 2024)	30

Key Procedural Violations:

Judge Williams denied the defendant and his attorney the opportunity to be heard on the merits of Criminal Case B2402220 and issued a bench warrant, despite both being present in open court and requesting a hearing and dismissal of the case.

This constitutes a violation of due process and denial of access to court. Applicable Law:

- U.S. Const. amend. XIV, § 1 (Due Process Clause)
- 42 U.S.C. § 1983 (Deprivation of constitutional rights under color of law)
- Cal. Const. art. I, § 7(a) (Due Process)
- Procedural due process requires meaningful opportunity to be heard before deprivation of liberty (Mathews v. Eldridge, 424 U.S. 319 (1976))

AUTHENTICATION

All documents and recordings in this Exhibit A are true and correct copies or authentic records of the events described.

Respectfully submitted,

DATED: April 8, 2026


KOSTIANTYN MARS
Pro Se

EXHIBIT B-1

STATEMENT OF DISQUALIFICATION - JUDGE ANDREA FLINT (November 13, 2023)

Description: Statement of Disqualification timely filed against Judge Andrea Flint prior to the issuance of the Domestic Violence Restraining Order dated November 28, 2023.

Date: November 13, 2023

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/flint-disqualification-2023-11-13.pdf>

Scan QR Code for instant download of the complete document:



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FILED
NOV 18 2023
Clerk of the Court
Superior Court of the State of California
BY: CLINT DEPUTY
M. JOHNSON

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA**

KOSTIANTYN MARS
Petitioner,
vs.
HANNA MARS,
Respondent.

Case No.: 22FL003144
[Hon. Beth McGowen,
Presiding Judge of Superior Court of California
Dept. 79 -- Hon. Andrea Flint,
Judge to be served the Disqualification
Statement]

**NOTICE OF PETITIONER'S VERIFIED
STATEMENT OF DISQUALIFICATION
OF SANTA CLARA SUPERIOR COURT
JUDGE ANDREA E. FLINT
FOR IMPERMISSIBLE CONFLICT OF
INTEREST;
REQUEST FOR HER
DISQUALIFICATION AND
RETROACTIVE NULLIFICATION OF
HER ORDERS**

[Statement of Disqualification and
Memorandum of Points and Authorities filed
concurrently]

(Code Civ. Proc. 170.1(a)(6)(iii);
170.1(a)(3)A; 170.3)

- 1 -
NOTICE OF DISQUALIFICATION STATEMENT RE: HON. ANDREA E. FLINT
DISSOLUTION OF FAMILY MARS
CASE NO.: 22FL003144

EXHIBIT B-2

VOID AB INITIO DOMESTIC VIOLENCE RESTRAINING ORDER SIGNED BY JUDGE FLINT AFTER DISQUALIFICATION (November 28, 2023)

Description: Domestic Violence Restraining Order issued by disqualified Judge Andrea Flint after a timely Statement of Disqualification had been filed, rendering the order void ab initio under California Code of Civil Procedure § 170.4(d).

Date: November 28, 2023

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/dvro-flint-2023-11-28.pdf>

Scan QR Code for instant download of the complete document:



#E-192

DV-109 Notice of Court Hearing

Check stamp date two when form is filed

Filed
November 28, 2023
Clerk of the Court
Superior Court of CA
County of Santa Clara
22FL003144
By: adarnell

Instruction: The person asking for a restraining order must complete items ① and ②. The court will complete the rest of this form.

① Person Asking for Protection
Name: Hanna Mars

② Person to Be Restrained
Name: Konstantin Mars (aka Constantine Mars)

The court will fill out the rest of this form.

The temporary orders which are granted and attached remain in full force and effect while you are in court until your hearing is finished

③ Notice of Hearing
A court hearing is scheduled on the request for restraining orders against the person in ②:

Date: 12/14/2023 Time: 1:30PM
Dept.: 79 Room: _____
Name and address of court if different from above: _____

You may attend your court date remotely, such as by phone or videoconference. For more information, go to the court's website for the county listed above. To find the court's website, go to: www.courts.ca.gov/find-my-court.htm.

④ Temporary Restraining Orders (Any orders granted are attached on form DV-110.)
a. Temporary Restraining Orders (any order requested under Family Code section 6320):
(Check one):
(1) ☒ All granted until the court hearing.
(2) ☐ All denied until the court hearing. (Reasons for denial are given below in b.)
(3) ☐ Partly granted and partly denied until the court hearing. (Reasons for denial are given below in b.)
b. Reasons for denial of some or all of the orders requested on form DV-109:
(1) ☐ The facts given in the request (form DV-100) do not show reasonable proof of a past act or acts of abuse. (Family Code sections 6300, 6320, and 6320.5.)
(2) ☐ The facts given in the request do not give enough detail about the most recent incidents of abuse, including what happened, the dates, who did what to whom, or any injuries or history of abuse.
(3) ☐ Other reasons for denial: _____

Noted Court of California state courts
For address, visit: www.courts.ca.gov
Approved by DOJ

Notice of Court Hearing
(Domestic Violence Prevention)

DV-109, Page 1 of 2

Anna Mars

Doc ID: 1653d8042ede29f201018ced69e8020c0308

EXHIBIT B-3

KEY STATEMENTS AND MATERIAL FACTS FROM TRANSCRIPT AND AUDIO RECORDING (EXTORTION OF MONEY AND DOCUMENTS, THREATS OF MALICIOUS PROSECUTION) - HEARING BEFORE JUDGE STEPHEN LOWNEY (February 7, 2024)

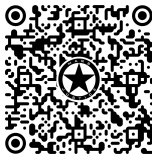
Description: Authenticated excerpts from the official transcript demonstrating coercion under color of law, extortion of 401(k) funds, vehicle title, and minor child's documents for child trafficking / international abduction of minor child outside United States, denial of hearings, threats of vexatious litigant status, denial of court access, contempt and malicious prosecution.

Date: February 7, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-hearing-key-statements-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



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8	HANNA MARS	)	Case No.: 22FL003144
9	Plaintiff(s),	)	KEY STATEMENTS &
10	vs.	)	MATERIAL FACTS
11	KOSTIANTYN MARS,	)	DATE: February 7, 2024
12	Defendant(s).	)	DEPT: 79
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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

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KOSTIANTYN MARS, PRO SE

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

HANNA MARS

Plaintiff(s),

vs.

KOSTIANTYN MARS,

Defendant(s).

Case No.: 22FL003144

**KEY STATEMENTS &
MATERIAL FACTS**

**DATE: February 7, 2024
DEPT: 79**

**KEY STATEMENTS & MATERIAL FACTS
FROM TRANSCRIPT OF HEARING BEFORE THE JUDGE STEPHEN LOWNEY
(February 7, 2024)**

The following statements and exchanges from the official transcript and audio recording of the February 7, 2024 hearing demonstrate Judge Stephen Lowney's extortion of financial assets, vehicle title documents, and the minor child's identifying documents, coupled with explicit and implicit threats of adverse judicial action, including declaration as a vexatious litigant, denial of access to the courts, contempt proceedings, and further malicious prosecution. Each entry provides the exact location and the verbatim text of the statements in the transcript. All excerpts are presented with sufficient surrounding context to establish the coercive nature of the exchanges establishing patterns of racketeering under color of law .

1. Coercion to Surrender 401(k) Retirement Funds and Insistence on Court-Appointed QDRO Expert Known For Financial Fraud

Judge Stephen Lowney required Petitioner to surrender control of his 401(k) account and directed that any division of the account would be handled exclusively through a court-appointed expert, Elizabeth Strasen, known for financial fraud, rather than through the standard Qualified Domestic Relations Order (QDRO) process available directly from the plan provider. Judge Stephen Lowney rejected Petitioner's proposal for an official QDRO prepared by the 401(k) administrator and stated that the matter would proceed only under Judge Stephen Lowney's designated expert known for financial fraud, thereby conditioning further proceedings on Petitioner's compliance with this demand.

-1-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

2. Coercion to Transfer Vehicle Title and Surrender Vehicle Title Documents

During discussion of property division, Judge Stephen Lowney explicitly required Petitioner to immediately transfer and surrender the title documents for the vehicle at issue. Judge Stephen Lowney framed this as a non-negotiable condition for resolution of pending matters and indicated that failure to comply would result in continued adverse rulings and denial of relief sought by Petitioner.

3. Extortion of Minor Child Max Mars's Passport, Vaccination Records, and All Identifying Documents for Child Trafficking / International Abduction outside of the United States to Ukraine, Coupled with Threats of Vexatious Litigant Declaration and Denial of Court Access

Judge Stephen Lowney demanded that Petitioner surrender the minor child Max Mars's passport, vaccination card, and all other identifying and travel documents to enforce international abduction of Petitioner's son Max Mars outside of the United States to Ukraine - endangering life of Petitioner's son Max Mars due to ongoing war in that country. When Petitioner sought a custody review hearing, Judge Stephen Lowney conditioned any consideration of custody or visitation issues on immediate compliance with this demand. Judge Stephen Lowney expressly warned that continued resistance would result in Petitioner being declared a vexatious litigant, thereby barring him from filing any further actions or seeking relief in the California courts. This threat was made in direct response to Petitioner's requests for a custody review hearing, trial on the domestic violence restraining order, final trial on all issues, and bifurcation of marital status.

4. Denial of Custody Review Hearing, DVRO Trial, Final Trial, Bifurcation, and Settlement Conference as Leverage for Extortion

Petitioner requested an immediate custody review hearing, trial on the mutual domestic violence restraining orders, final trial on all remaining issues, and bifurcation of the marital status. Judge Stephen Lowney denied each request and removed the final trial and mandatory settlement conference from the calendar. Judge Stephen Lowney stated that these matters would not be heard unless and until Petitioner complied with the demands for the 401(k) account, vehicle title, and the minor child's documents. Judge Stephen Lowney further indicated that non-compliance would result in additional contempt proceedings and further malicious prosecution by the Court.

5. Additional Coercive Statements, Implicit Threats of Denial of Access to Court, Contempt and Further Malicious Prosecution

Throughout the hearing, Judge Stephen Lowney repeatedly framed Petitioner's requests for due process (custody review, evidentiary hearings, and trial) as contingent upon immediate surrender of the financial and custodial documents demanded. Judge Stephen Lowney stated that Petitioner's failure to provide the required documents and accounts would lead to the imposition of further pressure through the Court's contempt powers, denial of access to court, and further complication of proceedings. These statements, when viewed in the full context of the hearing, constitute coercion and extortion under color of law by conditioning fundamental constitutional rights (access to court, custody determination, and liberty) on Petitioner's compliance with the Court's extrajudicial demands for assets and documents - establishing patten of extortion and racketeering under color of state law.

-2-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

These excerpts are corroborated by the full audio recording and certified transcript, both of which are included as Exhibits B-14 and B-15 in the Consolidated Evidence Binder. The pattern of demands for Petitioner's retirement funds, vehicle title, and the minor child's essential documents - paired with explicit threats of vexatious litigant status, denial of court access, contempt, and further prosecution - establish a clear record of coercion, extortion and racketeering under color of state law.

Item	Page	Line	Timestamp	Key Statement	Material Fact / Clarification
1	25	19	[01:20:00]	MS. ROBERTS: The last issue is ... divide Mr. Mars' 401(k) ... the choice of an expert to draft the QDRO.	Financial extortion - 401(k): Court-appointed expert Barbara Strasen imposed on Petitioner's 401(k) division; Petitioner is coerced to pay her fees.
2	26	11	[01:22:15]	MR. MARS: Your Honor, I provided QDRO prepared by my 401(k) provider to Ms. Roberts, and filed it to the court for final trial, but for some reasons it was ignored.	Petitioner provided the official QDRO prepared directly by the 401(k) plan provider , which was rejected.
3	27	1	[01:23:31]	JUDGE STEPHEN LOWNEY: The court selects Barbara Strasen to prepare the process. Both parties are ordered to cooperate with Ms. Strasen. That was the order, and that is the order. Everybody is expected to comply with that order.	Judge Lowney explicitly rejects the official provider QDRO and enforces use of his court-appointed expert.

1	1					
2	2					
3	3	4	27	8	[01:23:31]	JUDGE STEPHEN LOWNEY: You have to - Direct judicial order
4	4					coercing Petitioner to pay
5	5					Strasen's fees and surrender
6	6					control of the 401(k)
7	7	5	24	25	[01:17:46]	QDRO process to the
8	8					expert appointed by
9	9					Stephen Lowney.
10	10					
11	11					
12	12	6	25	1	[01:17:46]	JUDGE STEPHEN LOWNEY: So, Mr. Mars, Coercion to surrender
13	13					vehicle title under threat of
14	14					contempt of court.
15	15					
16	16					
17	17	7	25	4	[01:18:21]	JUDGE STEPHEN LOWNEY: Within 24 Coercion to surrender
18	18					vehicle title under threat of
19	19					contempt of court.
20	20					
21	21	8	19	6-9	[01:02:13]	MS. ROBERTS: I have Extortion / Coercion to
22	22					surrender minor child
23	23					Max Mars's passport,
24	24					green card, and identity
25	25					documents.
26	26					
27	27					
28	28					

1	1					
2	2					
3	3	9	20	3-5	[01:03:35]	JUDGE STEPHEN LOWNEY: You must comply with the orders.
4	4					Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents.
5	5					MR. MARS: Your Honor, my son will be abducted to Ukraine and will never return.
6	6					Threat to Max Mars's life due to international abduction outside the United States to Ukraine.
7	7					There is a war. Max can die.
8	8					
9	9	10	21	11-20	[01:07:00]	MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine?
10	10					Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents.
11	11					
12	12					JUDGE STEPHEN LOWNEY: You are going to comply.
13	13					Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine
14	14					The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child.
15	15					
16	16					And you are ordered to comply.
17	17					
18	18	20	11	19-20	1-27	[01:03:35]
19	19					JUDGE STEPHEN LOWNEY: We're talking about documents. You must turn them over.
20	20					Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt.
21	21					MR. MARS: Those orders were done by disqualified Judge Flint.
22	22					Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine
23	23					JUDGE STEPHEN LOWNEY: Yes, and they're valid.
24	24					
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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

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MR. MARS: Those orders were made against the factual and legal basis of the case.

JUDGE STEPHEN LOWNEY: The orders stand.

MR. MARS: I kindly request to stay this order until trial on opposing DVROs will be heard.

JUDGE STEPHEN LOWNEY: Denied. You must comply with the orders.

MR. MARS: Your Honor, my son will be abducted to Ukraine and will never return. There is a war. Max can die.

JUDGE STEPHEN LOWNEY: I want you to listen to the court. We have just gone over a vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the conduct in this case regarding filed motions. What is also really relevant to that designation and to the court in general is when you are ordered to do something by the court, that you comply - and that goes with both parties - and you are not complying. It's not good.

MR. MARS: Your Honor, I would love to comply, but first **I need this matter to be heard.**

JUDGE STEPHEN LOWNEY: You don't understand. So you do not set conditions on when the court orders are to be complied with. You just comply.

MR. MARS: Your Honor, this order **endangers the life of my son**, and the **court denies me to hear this matter.** What should I do?

JUDGE STEPHEN LOWNEY: The order is valid. You must comply.

MR. MARS: Your Honor, signature of **disqualified Judge Towery, who also was removed from court like Flint**, cost my mom her life, put her in terminal condition, because **respondent with signature of bribed Judge Towery kicked 95-year-old senior woman with disabilities from home and caused her death.**

JUDGE STEPHEN LOWNEY: Mr. Mars, you have to comply.

-7-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

12	19	9	[01:02:13]	MS. ROBERTS: He's in violation of the court order. So I'm asking if you will not move, to court sign to re-issue those.	Threat of re-issuance of child's passport and identity documents for child trafficking / international abduction of minor child Max Mars outside of the United States to Ukraine
13	21	11-20	[01:07:00]	MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine?	Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt.
				JUDGE STEPHEN LOWNEY: You are going to comply. The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child. And you are ordered to comply.	Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine
14	14	15-16	[00:44:09]	MR. MARS: Is it possible to hear DVROs trial today? JUDGE STEPHEN LOWNEY: No. And the request for a final trial date is denied.	Denial of DVRO trial and final trial on marital status as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

-8-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

15	15	9	[00:47:02]	JUDGE STEPHEN LOWNEY: We are going to vacate the March 5th status conference. We are not going to set a trial.	Removal of status conference and refusal to set trial - blocking case resolution as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars
16	12-13	10-20	[00:37:02]	MR. MARS: Do I understand correctly that we can bring this matter to a family status conference?	Denial of DVRO trial, custody review hearing, final trial and settlement conference used as the leverage of coercion to surrender custody rights and extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars
				JUDGE STEPHEN LOWNEY: We're not ready to do that. We have a heavily impacted trial calendar. The first full half day I have is June 17th at 9:00 a.m.	
17	17	11	[00:53:54]	JUDGE STEPHEN LOWNEY: None of them have a legal basis. ... If I don't grant this order, what will stop you from continuing to file requests for orders ...	Threat of vexatious litigant designation to deny access to court.

CERTIFICATION

I, Kostiantyn Mars, declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing Exhibit B is a true and accurate summary of material statements taken from the official transcript of the hearing held on February 7, 2024, before the Honorable Stephen Lowney in Case No. 22FL003144.

1 All quoted language appears verbatim from the official court transcript. The page numbers and
2 timestamps referenced in this Exhibit correspond to the professional transcript filed
3 concurrently herewith.
4

5 Executed on April 8, 2026, at Austin, Texas.

6 DATED: April 8, 2026

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9 KOSTIANTYN MARS
10 Pro Se

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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

EXHIBIT B-4

TRANSCRIPT AND AUDIO RECORDING - HEARING BEFORE JUDGE STEPHEN LOWNEY (February 7, 2024)

Description: Certified transcript and audio recording of the February 7, 2024 hearing before Judge Stephen Lowney.

Date: February 7, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-hearing-transcript-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



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KOSTIANTYN MARS, PRO SE

SUPERIOR COURT OF THE STATE OF CALIFORNIA COUNTY OF SANTA CLARA

HANNA MARS	)	Case No.: 22FL003144
Plaintiff(s),	)	TRANSCRIPT OF HEARING
vs.	)	BEFORE THE JUDGE
	)	STEPHEN LOWNEY
KOSTIANTYN MARS,	)	
	)	DATE: February 7, 2024
Defendant(s).	)	DEPT: 79

TRANSCRIPT OF HEARING BEFORE THE JUDGE STEPHEN LOWNEY

Date: February 7, 2024

Prepared from the official court audio recording

APPEARANCES:

For Petitioner Hanna Mars:

Nancy Roberts, Esq.

Assisted by Maria Rekretuyuk, Certified Ukrainian Language Interpreter (Bench No. 700739)

For Respondent Kostiantyn Mars:

Kostiantyn Mars, appearing pro se

-1-

Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

1 **JUDGE STEPHEN LOWNEY:** The orders stand.

2 **MR. MARS:** I understand, Your Honor, but I kindly request to stay this order until trial on
3 opposing DVROs will be heard.

4 **JUDGE STEPHEN LOWNEY:** Denied. You must comply with the orders.

5 **MR. MARS:** Your Honor, my son will be abducted to Ukraine and will never return. There is a
6 war. Max can die. May I explain with evidence?

7 **JUDGE STEPHEN LOWNEY:** I want you to listen to the court. We have just gone over a
8 vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the
9 conduct in this case regarding filed motions. What is also really relevant to that designation
10 and to the court in general is when you are ordered to do something by the court, that you
11 comply - and that goes with both parties - and you are not complying. It's not good.

12 **MR. MARS:** Your Honor, I would love to comply, but first I need this matter to be heard.

13 **JUDGE STEPHEN LOWNEY:** You don't understand. So you do not set conditions on when
14 the court orders are to be complied with. You just comply.

15 **MR. MARS:** Your Honor, this order endangers the life of my son, and the court denies me to
16 hear this matter. What should I do?

17 **[01:05:23]**

18 **JUDGE STEPHEN LOWNEY:** You should have appealed the order. We've gone over this.
19 You disagree with it, the order was heard, you disagree with it, it was valid, and the law
20 provides a remedy, and that remedy is appeal. You did not appeal. The order is valid. You must
21 comply.

22 **MR. MARS:** Your Honor, signature of disqualified Judge Towery, who also was removed
23 from court like Flint, cost my mom her life, terminal condition, because respondent with
24 signature of bribed Judge Towery kicked 95-year-old senior woman with disabilities from
25 home and caused death.

26 **JUDGE STEPHEN LOWNEY:** So, Mr. Mars, you have to comply.

27 **MR. MARS:** Your Honor, could we hear this matter?

28 **JUDGE STEPHEN LOWNEY:** I'm hearing it. I'm hearing it right now.

MR. MARS: With evidence, your Honor. With evidence that confirms that the respondent
doesn't have any bond with the United States and abducts my son to Ukraine.

JUDGE STEPHEN LOWNEY: No, no, no. You're asking for the hearing of the previous
matter. No, they're not.

[01:06:28]

MR. MARS: So the only way is appeal, right?

-20-

Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

1 **JUDGE STEPHEN LOWNEY:** The only way for you to have that order reversed is for you
2 to appeal, which you did not appeal. You apparently decided you weren't going to comply. I
3 know that you have reasons, but your reasons are irrelevant. The only thing that we are here
4 today is to talk about the fact that you are going to comply.

5 [01:07:00]

6 **MR. MARS:** Do I have any choice?

7 **JUDGE STEPHEN LOWNEY:** You do not have any choice. That's what I've been trying to
8 say. You do not have a choice. The court has a lot of choices. I should tell you that. The court
9 has a lot of choices on how it's going to enforce its orders. I'm trying to reason with you, and
10 I'm trying to get you to understand that it's in your best interest, in a lot of different ways, to
11 comply with these orders.

12 **MR. MARS:** I understand, Your Honor.

13 **JUDGE STEPHEN LOWNEY:** So here's what I want to hear.

14 **MR. MARS:** What should I do if my son will die after international abduction, becoming a
15 victim of the war in Ukraine?

16 [01:07:39]

17 **JUDGE STEPHEN LOWNEY:** I know you want the order changed. I know you want me to
18 change it. I'm not going to, and you are going to comply.

19 [01:07:55]

20 **JUDGE STEPHEN LOWNEY:** And just to be clear, because I want the record to be clear, the
21 request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the
22 minor child.

23 **MS. ROBERTS:** Yes, to follow the court order from July trial.

24 **JUDGE STEPHEN LOWNEY:** And you are ordered to comply. To the letter, every part of
25 that order.

26 [01:08:24]

27 **MR. MARS:** Your Honor, what exactly is requested? And who should receive the documents
28 of my son?

MS. ROBERTS: The court order, Your Honor, is to deliver them to my office. They are to be
held in trust by my office.

JUDGE STEPHEN LOWNEY: Do you have the order?

MR. MARS: Your Honor, I don't have it, and I would raise to the attention of the court that
Nancy Roberts was requested to be disqualified, and I don't trust her with the life of my son.

-21-

Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

EXHIBIT B-5

STATEMENT OF DISQUALIFICATION - JUDGE STEPHEN LOWNEY (February 20, 2024)

Description: Statement of Disqualification timely filed against Judge Stephen Lowney.

Date: February 20, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-disqualification-2024-02-20.pdf>

Scan QR Code for instant download of the complete document:



1 KOSTIANTYN MARS
2 PO BOX 8081
3 SAN JOSE, CA 95155
4 (408) 518-0088
5 CONSTANTINE.MARS@GMAIL.COM
6 PER SE

(ENDORSED)
FILED
FEB 20 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY J. RARAS DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY OF SANTA CLARA

8 KOSTIANTYN MARS
9 Petitioner, Case No.: 22FL003144
10 vs. [Honorable Beth McGowen,
11 HANNA MARS, [Dept. 72 - Honorable Brooke A. Blecher,
12 Supervising Judge of Superior Court of California]
13 Respondent. [Dept. 79 - Hon. Stephen P. Lowney,
14 Judge to be served the Disqualification Statement]

15 NOTICE OF PETITIONER'S VERIFIED
16 STATEMENT OF DISQUALIFICATION OF
17 SANTA CLARA SUPERIOR COURT JUDGE
18 STEPHEN P. LOWNEY
19 FOR IMPERMISSIBLE CONFLICT OF
20 INTEREST,
21 REQUEST FOR HIS DISQUALIFICATION,
22 STAY ON ALL HIS ORDERS UNTIL FINAL
23 JUDGMENT,
24 AND NULLIFICATION OF ALL HIS ORDERS
25 RETROACTIVELY BACK TO 10/31/2022

[Statement of Disqualification and Memorandum of
Points and Authorities filed concurrently]

(Code Civ. Proc. 170.1(a)(6)(iii);
170.1(a)(3)(A); 170.3)

- 1 -

NOTICE OF DISQUALIFICATION STATEMENT RE: HON. STEPHEN P. LOWNEY
DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144

EXHIBIT B-6

ITEMS SEIZED FROM MINOR CHILD MAX MARS DURING ARREST - TESLA CYBERTRUCK WITH DONALD TRUMP, “WARRIOR KID” BOOK BY JOCKO WILLINK, DONUTS AND HOT CHOCOLATE - DENIAL OF CONTACT (June 14, 2024)

Description: Items seized from minor child Max Mars during Petitioner’s arrest, demonstrating denial of contact and freedom under color of law.

Date: June 14, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/criminal-case/seized-items-cybertruck-donald-trump-2024-06-14.pdf>

Scan QR Code for instant download of the complete document:

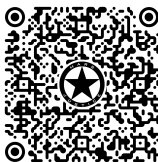




EXHIBIT B-7

**VIDEO RECORDING OF UNLAWFUL ARREST
BY OFFICER CHASE MARTIN
(BADGE #17209, SUNNYVALE PD, CA)
(June 14, 2024)**

Description: Video recording of unlawful arrest by Sunnyvale Police Department Officer Chase Martin (Badge #17209).

Date: June 14, 2024

ACCESS FULL VIDEO

Full Video:

https://drive.google.com/file/d/1O6yLk2-C_duS0uSko9erA9-ngP5xwnZ7/preview

Scan QR Code for instant access to full video:

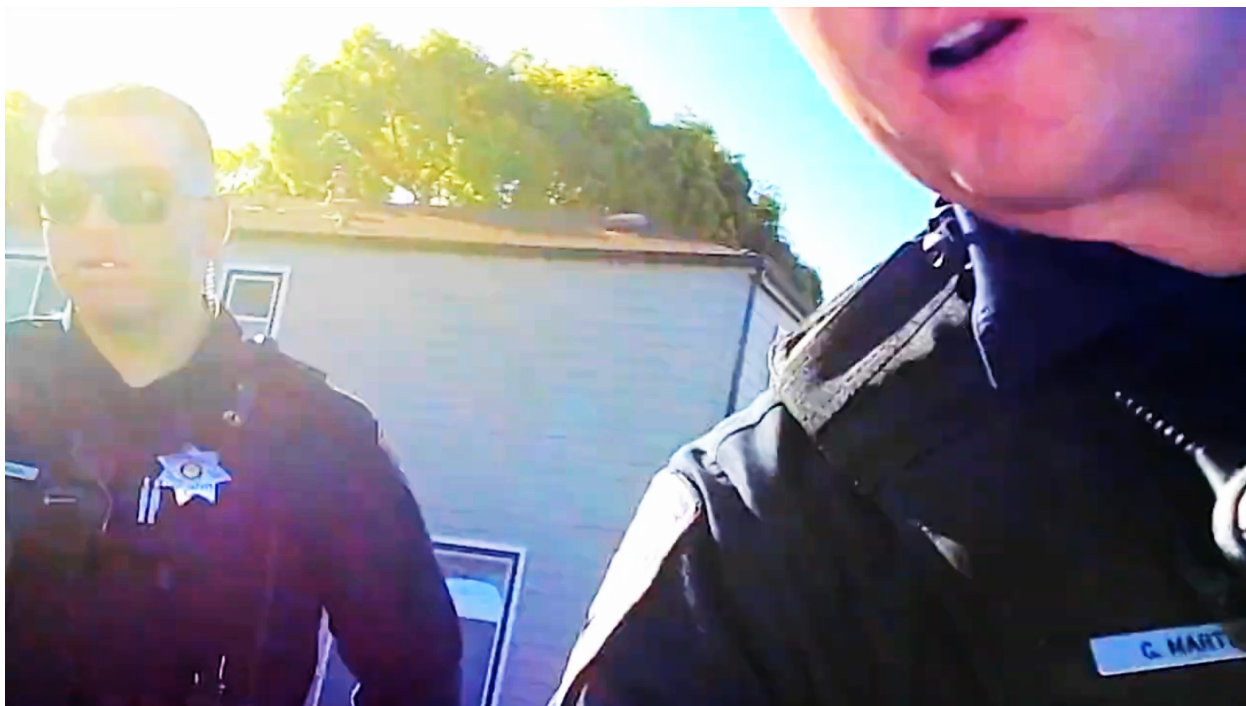


EXHIBIT B-8

VOID AB INITIO BENCH WARRANT ISSUED BY JUDGE STEPHEN LOWNEY AFTER HIS DISQUALIFICATION AND THREATS OF MALICIOUS PROSECUTION (June 17, 2024)

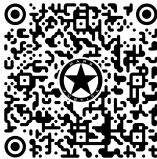
Description: Bench warrant issued by disqualified Judge Stephen Lowney after his disqualification (February 20, 2024) and threats of malicious prosecution (February 7, 2024).

Date: June 17, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-bench-warrant-2024-06-17.pdf>

Scan QR Code for instant download of the complete document:



 SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars 22FL003144 Date of Hearing: 06/17/2024	Hearing Start Time: 9:00 AM Hearing Type: OSC: Contempt Comments: Line 1-9
--	--

Heard By: Lowney, Stephen
Courtroom Reporter: Genice Perez
Location: Department 79
Courtroom Clerk: True Parker
Court Interpreter:
Court Investigator:
Future Hearings:

Parties Present:
Mars, Hanna
Roberts, Nancy Lee
Respondent
Attorney
Limited Scope
Attorney

Exhibits:

Case is called at 9:02 am.
Petitioner- Kostiantyn Mars is not present.
Attorney Nancy Roberts and the respondent- Hanna Mars are personally present.
Respondent is assisted by Russian interpreter, Laura Mirzoyan (301297).
Respondent- Hanna Mars is sworn.
Court reporter reports on line 9 only, OSC: Contempt matter.

Line 1:
Respondent's request for Request for Order: Domestic Violence.
The Court finds today is the date and time set for the hearing on this matter. Petitioner- Kostiantyn Mars had notice and an opportunity to be heard, Mr. Mars has failed to appear.
The Court makes orders and GRANTS the restraining order as requested.

Respondent- Hanna Mars's request for a Restraining Order is granted; a DVRO is issued restraining Petitioner- Kostiantyn Mars for a period of 3 years, the Restraining Order expires 06-17-2027. The DVRO is issued under the same terms as the DVRO which includes Maksym Mars age 8 with the following modification: Petitioner- Kostiantyn Mars shall not call the police to tell them the child is abducted and abused.

Order to Not Abuse granted.
Restrained person must not:
Harass, attack, strike, threaten assault (sexually or otherwise), hit, follow, stalk, molest, destroy personal property, keep under surveillance, impersonate (on the in Internet, electronically or otherwise), block movements, annoy by phone or other electronic means (including repeatedly

Printed: 6/17/2024 06/17/2024 OSC: Contempt - 22FL003144 Page 1 of 4



SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

MINUTE ORDER

Line 8:

Petitioner's Request for Order: Bifurcate

The Court finds today is the date and time set for the hearing on this matter. Petitioner- Kostiantyn Mars had notice and an opportunity to be heard, Mr. Mars has failed to appear.

Petitioner's Request for Order: Bifurcate is DENIED.

Matter will go off calendar.

Line 9:

Respondent's OSC: Contempt

Reported by official Court reporter: Genice Perez

Matter is set for arraignment on the OSC: Contempt.

Attorney Nancy Roberts provides an update re: petitioner- Kostiantyn Mars; petitioner violated the restraining order on Friday and was arrested, petitioner may have bailed out.

The Court responded to Mr. Mars' email request; a follow-up email was sent to the petitioner denying his request for a continuance this morning.

The Court finds today is the date and time set for line 9 order to show cause on the contempt.

Petitioner- Kostiantyn Mars has failed to appear; the Court issues a civil bench warrant in the amount of \$5,000.00.

Attorney Nancy Roberts to prepare the restraining order after hearing.

The Clinic to prepare order after hearing for petitioner.

TO: KOSTIANTYN MARS
211 HOPE ST
MOUNTAIN VIEW, CA 94041

FROM: SUNNYVALE DPS
700 ALL AMERICA WAY
SUNNYVALE, CA 94086

Name: KOSTIANTYN MARS DOB: 04/20/1987
CDL: CA Y6231733 Sex: M Hair: BK Eyes: GR Height: 511 Weight: 230 Race: W
SMT:
PFN: EHP636 CII: A42242743 FBI:
CEN: 24017929 Docket: B2402220 Control Number: 002400020658
Complaint Agt: SUNNYVALE DPS Agt Case No: 244882 SVC Agt: SUNNYVALE DPS
Issue Date: 08/21/2024 Charges
(M) PC273.6(A) PR:

BAIL AMOUNT: 25000
Fingerprints Not Needed

Re: NOTICE OF BENCH WARRANT

Santa Clara County Superior Court has issued a Bench Warrant for the arrest of the person named above. This letter is to advise you of your options to clear the warrant. Please bring photo ID and follow the instructions checked below. For acceptable forms of payment or additional information regarding self-surrender processes and alternate locations, please contact the law enforcement agency noted at the top of this letter.

- ___ 1. Appear in person at the agency whose name appears at the top of this letter. You will sign a promise to appear and will be issued a new court appearance date.
- ___ 2. You are eligible to clear this warrant by paying the full bail amount noted above and forfeiting your right to appear in court.
- X 3. Appear in person and pay the full bail amount stated on the warrant OR be booked into county jail.
- ___ 4. This warrant requires you to SELF-SURRENDER at the Santa Clara County Main Jail located at 150 West Hedding Street, San Jose, CA 95110.

Thank you for your immediate attention to this matter. If you believe you have received this letter in error, please contact the law enforcement agency noted at the top.

ARREST WARRANT

PFN: EHP636

CII: A42242743

FBI: 5WA0EDJWP

WARRANT CONTROL NO: 2400025644

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA

THE PEOPLE OF THE STATE OF
CALIFORNIA,

Plaintiff,

vs.

Kostiantyn Mars
Konstantyne Mars
211 Hope St
Mountain View, CA 94041

Defendant

DOCKET NO: C2416667
DRIVERS LIC NO: CAY6231733
AGENCY CASE NO: 241650265Z

DESCRIPTION

BIRTHDATE: 04/20/1987
HEIGHT: 511 WEIGHT: 230
HAIR: Black EYES: Green SEX: M
RACE: White
REMARKS:
SERVICE AGCY:04300

THE PEOPLE OF THE STATE OF CALIFORNIA TO ANY PEACE OFFICER OF THIS STATE:
COMPLAINT UNDER OATH HAVING BEEN MADE BEFORE ME BY:

M7860 Michael Mazon

SANTA CLARA COUNTY SHERIFF'S OFFICE

THAT THE OFFENSE OF:

CHARGES

(M) PC166(a)(4)

OF COUNTS: 1 FINEANCEMENTS

A MISDEMEANOR HAS BEEN COMMITTED, AND A PERSON USING
Kostiantyn Mars

THEREOF, YOU ARE THEREFORE COMMANDED TO ARREST THE ABOVE-NAMED DEFENDANT AND
BRING SAID DEFENDANT FORTHWITH BEFORE THE ENTITLED COURT.

☐ THIS WARRANT IS ELIGIBLE FOR NIGHT SERVICE PER SEC 840 PC.

DEFENDANT MAY BE RELEASED TO BAIL IN THE SUM OF \$ **\$15,000.00**

WITNESS MY HAND AND SEAL,

10/23/2024

/S/ Clark, L. Michael

Judge of the Superior Court
of California



HALL OF JUSTICE
190 WEST HEDDING STREET
SAN JOSE, CA 95110

MAILING ADDRESS IS:
SUPERIOR COURT
191 N. FIRST STREET
SAN JOSE, CA 95113

COURT APPEARANCE TIMES AND DATES
09:00 MONDAY THRU FRIDAY MISD
01:30 MONDAY THRU FRIDAY FEL

EXHIBIT B-10

SUNNYVALE POLICE DEPARTMENT - DENIAL OF ACCESS TO BODY CAMERA RECORDINGS OF POLICE OFFICERS COMMITTED UNLAWFUL ARREST (October 30, 2024)

Description: Denial by Sunnyvale Police Department of access to body camera recordings of police officers committed the unlawful arrest on June 14, 2024.

Date: October 30, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/criminal-case/sunnyvale-police-bodycam-recordings-denial-2024-10-30.pdf>

Scan QR Code for instant download of the complete document:



Follow up to your Access Sunnyvale service request: SR-00093342
CRM:002090001846

1 message

AccessSunnyvale AP <AccessSunnyvale@sunnyvale.ca.gov>
To: SR-00093342 [REDACTED]

Wed, Oct 30, 2024 at 9:17 AM

Hello Kostiantyn,

The City of Sunnyvale is in receipt of your public records act request dated 10/21/2024 for the following records: copy of police report 24-4882. We have determined that your request for records is not disclosable, for those records are unable to be released without a subpoena due to the nature of the charges.

I will be closing out this service request in the Access Sunnyvale system; however, should you have any questions please feel free to contact me at the Records Unit at 408-730-7101.



Follow us on:



Best Regards,

Deuel Galla (Pronouns: He/His)

Senior Records Specialist

Department of Public Safety

Phone: 408-730-7101

Fax: 408-730-7705

DGalla@Sunnyvale.ca.gov

Service Request details:

Service Request Number: SR-00093342

Submitted On: 10/21/2024 5:35 PM

Request Type: Public Records Request

Description: Hello, please provide police report, names, badge numbers, and bodycam records of police officers making arrest of Kostiantyn Mars on 06/14/2024 on address 1201 Sycamore Terrace 145 on allegations of violation of a restraining order.

Thank you

Initial Response Complete: No

EXHIBIT B-11

VIDEO RECORDINGS OF CRIMINAL COURT HEARINGS BEFORE JUDGES THOMAS KUHNLE AND BENJAMIN WILLIAMS (AUGUST 2024)

Description: Video recordings of criminal court hearings in which judges denied Petitioner a hearing on the merits despite his and counsel's presence in open court.

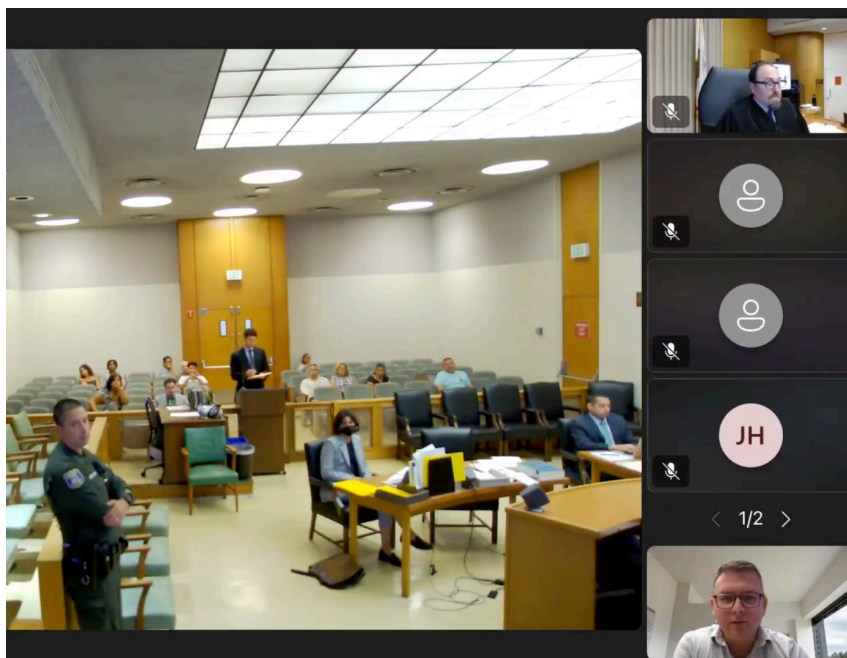
Key Procedural Violations:

Judge Williams denied the defendant and his attorney the opportunity to be heard on the merits of Criminal Case B2402220 and issued a bench warrant, despite both being present in open court and requesting a hearing and dismissal of the case.

This constitutes a violation of due process and denial of access to court. Applicable Law:

- U.S. Const. amend. XIV, § 1 (Due Process Clause)
- 42 U.S.C. § 1983 (Deprivation of constitutional rights under color of law)
- Cal. Const. art. I, § 7(a) (Due Process)
- Procedural due process requires meaningful opportunity to be heard before deprivation of liberty (Mathews v. Eldridge, 424 U.S. 319 (1976))

Date: August 2024



ACCESS FULL VIDEOS

- **August 15, 2024 (Kuhnle) Hearing**

Full Video:

https://drive.google.com/file/d/1DAaltUbRjYs_O_sUDpXiWYWExHtzG6ql/preview

Scan QR Code for instant access to full video:



- **August 19, 2024 (Williams) Hearing**

Full Video:

<https://drive.google.com/file/d/1dTvasJPaRW-MuYK9gpe0oagzWEdQEw73/preview>

Scan QR Code for instant access to full video:



- **August 21, 2024 (Williams) p.1**

Full Video:

https://drive.google.com/file/d/1Sn0_ZuVeTKEEEPIcN5eOSLtZ3CM4LFZ_/preview

Scan QR Code for instant access to full video:



- **August 21, 2024 (Williams) p.2 - Denial of hearing and issuance of bench warrant**

Full Video:

<https://drive.google.com/file/d/1e60zP91nn3hnodVQTVZB7xTjVwCBbVEC/preview>

Scan QR Code for instant access to full video:

